

9.	30-2025-01503814	1. Case Management Conference 1. Motion to Deem Facts Admitted Plaintiff Memory Lane Homeowners Association (“Plaintiff”) moves for an order (1) deeming the truth of all matters specified in Plaintiff’s first set of Requests for Admission as admitted; and (2) imposing monetary sanctions on Defendant Andrew Robert Grace (“Defendant”). Code of Civil Procedure section 2033.280(b) provides that, when a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” Subdivision (c) provides that the Court shall make this order, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” CCP §2033.280 provides that “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Plaintiff served the written discovery on Defendant on November 19, 2025. (Decl. of Frank Mickadeit ¶ 1.) Defendant failed to serve any responses by the December 24, 2025. (<i>Id.</i>, ¶ 2.) As of the date of filing of the Motion, Defendant has served no responses. (<i>Id.</i>, ¶ 3.) In light of the above, Plaintiff’s unopposed Motion is GRANTED. The matters in Plaintiff’s requests for admission are deemed admitted. The Court GRANTS Plaintiff monetary sanctions against Defendant in the amount of \$457.50 (1.5 hrs at \$265/hr + \$60 filing fee). Sanctions are due and payable to Plaintiff’s counsel within 30 days of notice of this order. Plaintiff to give notice.
10.	30-2025-01456639	1. Motion for Judgment on the Pleadings Defendant, General Motors, LLC (“GM”), moves for judgment on the pleadings as to all five causes of action asserted in the Complaint of Plaintiff, Robert Elliot Marsh (“Plaintiff”). The Motion is GRANTED, with 30 days leave to amend, as follows. “[A] motion for judgment on the pleadings is appropriate where the operative complaint does not state facts sufficient to constitute a cause of action against the named defendant.” (<i>Barajas v. Sativa L.A. Cnty. Water Dist.</i> (2023) 91 Cal.App.5th 1213, 1224, quotation marks and alteration omitted, review denied (Aug. 9, 2023).) “A motion sought on this basis is equivalent to a demurrer such that [the court’s] task is to examine the operative complaint’s allegations and any judicially noticed documents in order to assess whether the pled cause of action is legally viable.” (<i>Id.</i>, citation omitted.) Factual allegations are accepted as true and are given a liberal construction. (<i>Gerawan Farming, Inc. v. Lyons</i> (2000) 24 Cal.4th 468, 515-516.) Extrinsic evidence is not considered on a motion for judgment on the pleadings. (<i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999.)